SUPREME COURT OF INDIA

APPELLATE JURISDICTION · CONSTITUTION BENCH (5 JUDGES)

Civil Appeal No. 1392 of 1975 **CNR: SCIN010013921975**

Date of Pronouncement: 28 April, 1976 *Citation: (1976) 2 SCC 521*

CORAM: Hon'ble A.N. Ray, C.J., H.R. Khanna, M.H. Beg, Y.V. Chandrachud, P.N. Bhagw

Petitioner / Appellant: Additional District Magistrate, Jabalpur

- VERSUS -

Respondent / State: Shivkant Shukla & Others

SUBJECT: HABEAS CORPUS & EMERGENCY JURISPRUDENCE **STATUS: Overruled by Supreme Court (K.S. Puttaswamy)**

JUDICIAL RATIO DECIDENDI & OPERATIVE PRINCIPLES:

In view of Presidential Order under Article 359(1), no person has locus standi to move any writ petition under Article 226 for habeas corpus challenging legality of detention order. [OVERRULED by 9-Judge Bench in K.S. Puttaswamy (2017)].

STATUTORY PROVISIONS INTERPRETED: Article 21, Article 19, Article 14, Article 359, Article 226

FINAL DISPOSITION: HABEAS CORPUS PETITIONS BARRED (OVERRULED IN 2017)

EXECUTIVE SUMMARY:

Majority held that during Emergency, citizens could not enforce Right to Life and Liberty under Article 21 via Habeas Corpus. Justice H.R. Khanna delivered historic lone dissent. Explicitly overruled by K.S. Puttaswamy (2017).

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